

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----x
ELIZABETH CAMEJO,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. SERRANO, CASTILLO
SECURITY SERVICES, LTD., and "SECURITY
GUARD JOHN DOE", first and last name being
fictitious,

Defendants.
-----x

Index No.

Date Filed:

Plaintiff designates: New York
County as the place of trial

The basis of venue is:
Location of accident

S U M M O N S

Location of accident:
4892 Broadway
New York, New York 10034

To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney, within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, Judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 17, 2019

REDMOND LAW PLLC

By: 

Cornelius Redmond, Esq.
Attorneys for Plaintiff
80 Broad St., Suite 1202
New York, NY 10004
(212) 799-8989

Defendants' Addresses:

THE CITY OF NEW YORK

Office of the New York City Comptroller
1 Centre Street, Room 1225
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza Path
New York, New York 10007

P.O. SERRANO

1 Police Plaza Path
New York, New York 10007

CASTILLO SECURITY SERVICES, LTD.,

511-74th Street
Brooklyn, New York 11209

“SECURITY GUARD JOHN DOE”

511-74th Street
Brooklyn, New York 11209

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----x
ELIZABETH CAMEJO,

Index No.

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. SERRANO, CASTILLO
SECURITY SERVICES, LTD., and "SECURITY
GUARD JOHN DOE", first and last name being
fictitious,

Defendants.

-----x

Plaintiff, by her attorneys, REDMOND LAW PLLC complaining of the defendants, all
upon information and belief, respectfully states and alleges as follows:

1. That at all times herein mentioned, the plaintiff was and still is a resident of the
County of Bronx, City and State of New York.

2. That at all times herein mentioned, the occurrence that gave rise to this action
occurred in the County of New York, City and State of New York.

3. That upon information and belief, at all times herein mentioned, the defendant, THE
CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under
and by the virtues of the laws of the State of New York.

4. That upon information and belief, at all times herein mentioned, the defendant, THE
NEW YORK CITY POLICE DEPARTMENT, was and still is a municipal corporation duly
organized and existing under and by the virtues of the laws of the State of New York.

5. That at all times herein mentioned the defendant, THE CITY OF NEW YORK
(hereinafter "CITY") was a public benefit corporation, duly organization and existing under and
by virtue of the laws of the State of New York.

6. That at all times herein mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT (hereinafter “NYPD”) was a public benefit corporation, duly organization and existing under and by virtue of the laws of the State of New York.

7. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of plaintiff, ELIZABETH CAMEJO, upon defendants, CITY and NYPD, in accordance with Section 50-e of the General Municipal Law.

8. Although more than thirty (30) days have elapsed since service of such Notice of Claim, defendants, CITY and NYPD, has neglected and refused to pay said claim or adjust same.

9. A hearing pursuant to General Municipal Law 50-h has been held.

10. This action is commenced within one (1) year and ninety (90) days from September 30th, 2018, the date the accident occurred.

11. That at all herein mentioned, the defendant, P.O. SERRANO, (hereinafter “SERRANO”) was and still is a resident of the County of New York, City and State of New York.

12. That on September 30th, 2018, at approximately 3:00 A.M. at or near Inwood Bar and Grill located at 4892 Broadway, New York, New York 10034, Plaintiff, ELIZABETH CAMEJO, was recklessly, negligently, and without investigation, arrested, touched, beaten, grabbed, pushed, shoved, tackled, assaulted, battered, violated, and humiliated in the most egregious and excessive manner by SERRANO.

13. At no time did ELIZABETH CAMEJO resist arrest.

14. That at all times herein mentioned the defendant, CASTILLO SECURITY SERVICES, LTD., (said defendant hereinafter referred to as “CASTILLO”) was a domestic corporation, duly organization and existing under and by virtue of the laws of the State of New York.

15. That upon information and belief, at all times herein mentioned, the defendant, CASTILLO, was a foreign corporation duly authorized to do business within the State of New York.

16. That upon information and belief, at all times herein mentioned, the defendant, CASTILLO, was a partnership transacting business in the State of New York.

17. That upon information and belief, at all times herein mentioned, the defendant, CASTILLO, was a business entity doing business within the State of New York.

18. That at all herein mentioned, the defendant, SECURITY GUARD JOHN DOE, (hereinafter "DOE") was and still is a resident of the County of Kings, City and State of New York.

19. That on September 30th, 2018, at approximately 3:00 A.M. at or near Inwood Bar and Grill located at 4892 Broadway, New York, New York 10034, Plaintiff, ELIZABETH CAMEJO, was recklessly, negligently, and without investigation, pepper sprayed, touched, attacked, grabbed, pushed, kicked, dragged, violated, and humiliated in the most egregious and excessive manner by DOE.

20. That on September 30th, 2018, plaintiff was lawfully at or near Inwood Bar and Grill located at 4892 Broadway, New York, NY 10034.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF
ELIZABETH CAMEJO

21. Plaintiff, ELIZABETH CAMEJO, repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-20 with the same force and effect as if fully set forth at length herein.

22. That on September 30th, 2018, at approximately 3:00 A.M., and while in the custody of the defendants the Plaintiff, ELIZABETH CAMEJO, was without just cause, probable cause or provocation, and with reckless and negligent, and without investigation, assaulted, battered,

shoved, beaten, tackled, touched, grabbed and dragged in an excessive and illegal manner and with excessive force by SERRANO.

23. That on or about September 30th, 2018, and while in the custody of the defendants the Plaintiff, ELIZABETH CAMEJO, was intentionally dragged over the said location, touched, pushed, grabbed, shoved, beaten, tackled, assaulted, battered, violated and humiliated, in the most egregious, excessive, and illegal manner by SERRANO, who was acting within the scope of his employment and authority in such a manner as to knowingly cause serious injuries to plaintiff.

24. Defendant SERRANO dragged ELIZABETH CAMEJO over the said location, without any reasonable justification or lawful purpose for the amount of force used.

25. That on or about September 30th, 2018 SERRANO, acting as agents and on behalf of the CITY and , within the scope of his employment, did intentionally, wilfully and maliciously assault and batter the Plaintiff, ELIZABETH CAMEJO, in the most egregious, excessive, and illegal matter in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, ELIZABETH CAMEJO, and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff, ELIZABETH CAMEJO, and caused such trauma in and on her head, body and limbs.

26. Upon information and belief, Defendant, SERRANO acted pursuant the NYPD's continuing custom or practice of condoning NYPD's Officers' unjustified use of force, because it knew to a virtual certainty that it would not be disciplined for its unlawful use of force against ELIZABETH CAMEJO.

27. Upon information and belief, the Defendant, SERRANO, acted pursuant the NYPD's continuing custom or practice of condoning NYPD Officers' unjustified use of force while effectuating arrests and to penalize individuals for questioning their authority.

28. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff, ELIZABETH CAMEJO, suffered serious and permanent bodily injury in and on her head, body and limbs and was rendered sick, sore, lamed and disabled, and suffered conscious pain and suffering, and that she was otherwise damaged.

29. That as a result of the aforesaid assault and battery the Plaintiff, ELIZABETH CAMEJO, was caused to sustain serious, severe, painful and permanent bodily injuries so that she was rendered sick, sore, lamed and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavour to cure herself of her said injuries and she was and will be prevented from attending her usual occupation and duties.

30. That at all times hereinafter mentioned the actions of CITY, NYPD and SERRANO as described above were carried out in a reckless, deliberate, wilful, wanton, malicious and grossly negligent manner.

31. That by reason of the foregoing, Plaintiff, ELIZABETH CAMEJO, has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF
ELIZABETH CAMEJO

32. Plaintiff, ELIZABETH CAMEJO, repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-31 with the same force and effect as if fully set forth at length herein.

33. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to SERRANO, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

34. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyse test results, and/or investigate above mentioned police officers' backgrounds and performances.

35. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

36. Defendants CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendants' police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

37. That by reason of the above, the Plaintiff, ELIZABETH CAMEJO, was injured in mind and body as she was arrested, prosecuted and rendered sick, sore, and damaged.

38. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, wilful, wanton, malicious and grossly negligent manner.

39. That by reason of the foregoing, Plaintiff ELIZABETH CAMEJO has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF PLAINTIFF
ELIZABETH CAMEJO

40. Plaintiff ELIZABETH CAMEJO repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 39 with the same force and effect as if fully set forth at length herein.

41. At all times mentioned herein and above, defendants CITY and NYPD employed SERRANO as police officers and named defendants were acting under colour of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

42. Plaintiff, ELIZABETH CAMEJO, is and at all times relevant herein, a citizen of the United States and a resident of BRONX County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

43. That on or about September 30th, 2018, defendants CITY, NYPD and SERRANO, without probable cause, reasonable cause or legal justification, did assault, search and commit a battery and grab the Plaintiff, ELIZABETH CAMEJO, without a court authorized arrest warrant or search warrant and defendants did physically assaulted Plaintiff, ELIZABETH CAMEJO, in an unlawful and excessive manner.

44. The above actions of defendants CITY, NYPD and SERRANO resulted in Plaintiff, ELIZABETH CAMEJO, being deprived of the following rights under the United States

Constitution: a) Freedom from assault to her person; b) Freedom from battery to her person; c) Freedom from malicious prosecution d) To freedom from excessive force e) The right to be secure in ones' person and effects against unreasonable search and seizure under the 4th and 14th Amendments; f) the right to be informed of the nature and cause of the accusation against one under the 6th and 14th Amendments; g) the right not to be deprived of life, liberty or property without due process of law; h) the right to equal protection of the laws, secured by the 14th Amendment and the right to be free from cruel and unusual punishment guaranteed by the 8th Amendment and the 14th Amendment; and the right to legal counsel.

45. In addition to the above, defendants, CITY and NYPD, have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the assault and battery of plaintiff, regarding the protection of the constitutional rights of citizens.

46. Defendants, CITY, NYPD and SERRANO, subjected Plaintiff, ELIZABETH CAMEJO, to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff, ELIZABETH CAMEJO's rights and with deliberate indifference to the United States Constitution.

47. The direct and proximate result of the defendants, CITY, NYPD and SERRANO, acts are that Plaintiff, ELIZABETH CAMEJO has suffered severe and permanent injuries, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

48. That by reason of the foregoing, Plaintiff, ELIZABETH CAMEJO has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
ELIZABETH CAMEJO

49. Plaintiff, ELIZABETH CAMEJO, repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-48 with the same force and effect as if fully set forth at length herein.

50. That the CASTILLO, its agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to SECURITY, in that said security guard, as employee of CASTILLO was not qualified to be hired or retained or promoted as security guard, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that was employed by CASTILLO.

51. That the CASTILLO failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CASTILLO failed to adequately test, analyse test results, and/or investigate above mentioned security guard's backgrounds and performances.

52. That the CASTILLO failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CASTILLO failed to adequately screen said security guard, failed to adequately monitor said security guard, and failed to adequately discipline said security guard when they violate Patrol Guidelines.

53. Defendant CASTILLO was also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the security guard defendant named herein, knew or should have known of the bad disposition of said defendant, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendants' security guard was not suitable to be hired and employed by the CASTILLO and that due to their lack of training, the security guard should have had adequate

supervision so that said security guard would not arrest mistreat individuals nor use excessive force during the security screening process.

54. That by reason of the above, the Plaintiff, ELIZABETH CAMEJO, was injured in mind and body as she was mistreated, attacked and rendered sick, sore, and damaged.

55. That at all times hereinafter mentioned the actions of CASTILLO and all defendant herein as described above were carried out in a reckless, deliberate, wilful, wanton, malicious and grossly negligent manner.

56. That by reason of the foregoing, Plaintiff ELIZABETH CAMEJO has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
ELIZABETH CAMEJO

57. Plaintiff, ELIZABETH CAMEJO, repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-56 with the same force and effect as if fully set forth at length herein.

58. That on September 30th, 2018, at approximately 3:00 A.M. at or near Inwood Bar and Grill located at 4892 Broadway, New York, New York 10034, Plaintiff, ELIZABETH CAMEJO, was recklessly, negligently, and without investigation, pepper sprayed, touched, attacked, grabbed, pushed, kicked, dragged, violated, and humiliated in the most egregious and excessive manner by SECURITY.

59. That on or about September 30th, 2018, and while in the custody of the defendant the Plaintiff, ELIZABETH CAMEJO, was intentionally pepper sprayed, touched, attacked, grabbed, pushed, kicked, dragged, violated, and humiliated in the most egregious and excessive manner by SECURITY, who was acting within the scope of his employment and authority in such a manner as to knowingly cause serious injuries to plaintiff.

60. Defendant SECURITY dragged ELIZABETH CAMEJO over the said location, without any reasonable justification or lawful purpose for the amount of force used.

61. That on or about September 30th, 2018 SECURITY, acting as agent and on behalf of the CASTILLO, within the scope of its employment, did intentionally, wilfully and maliciously assault and batter the Plaintiff, ELIZABETH CAMEJO, in the most egregious, excessive, and illegal matter in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, ELIZABETH CAMEJO, and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner grabbed and attacked the plaintiff and/or offensive bodily contact to the Plaintiff, ELIZABETH CAMEJO, and caused such trauma in and on her head, body and limbs.

62. That as a result of the aforesaid assault and battery the Plaintiff, ELIZABETH CAMEJO, was caused to sustain serious, severe, painful and permanent bodily injuries so that she was rendered sick, sore, lamed and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavour to cure herself of her said injuries and she was and will be prevented from attending her usual occupation and duties.

63. That at all times hereinafter mentioned the actions of CASTILLO and SECURITY as described above were carried out in a reckless, deliberate, wilful, wanton, malicious and grossly negligent manner.

64. That by reason of the foregoing, Plaintiff, ELIZABETH CAMEJO, has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
ELIZABETH CAMEJO

65. Plaintiff ELIZABETH CAMEJO repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 64 with the same force and effect as if fully set forth at length herein.

66. At all times mentioned herein and above, defendant CASTILLO employed SECURITY as security guard and named defendant were acting under colour of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

67. Plaintiff, ELIZABETH CAMEJO, is and at all times relevant herein, a citizen of the United States and a resident of BRONX County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

68. That on or about September 30th, 2018, defendants CASTILLO and SECURITY, without probable cause, reasonable cause or legal justification, did assault, search and commit a battery and grab the Plaintiff, ELIZABETH CAMEJO, without an order and defendants did physically assaulted Plaintiff, ELIZABETH CAMEJO, in an unlawful and excessive manner.

69. In addition to the above, defendant CASTILLO, have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its security guards, including the guard involved in this case, regarding the protection of the constitutional rights of citizens.

70. Defendants, CASTILLO and SECURITY, subjected Plaintiff, ELIZABETH CAMEJO, to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff, ELIZABETH CAMEJO's rights and with deliberate indifference to the United States Constitution.

71. The direct and proximate result of the defendants, CASITLLO and SECURITY, acts are that Plaintiff, ELIZABETH CAMEJO has suffered severe and permanent injuries, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

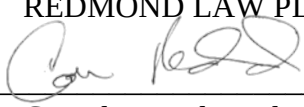
72. That by reason of the foregoing, Plaintiff, ELIZABETH CAMEJO has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state

CLAIM FOR PUNITIVE DAMAGES

73. The Plaintiff makes a claim for punitive damages against the Defendants in this action.

WHEREFORE, plaintiff demands judgment against the defendants in an amount which exceeds the jurisdictional limits of the lower courts of the State of New York, together with the costs and disbursements of this action.

Dated: New York, New York
September 17, 2019

REDMOND LAW PLLC
By: 

Cornelius Redmond, Esq.
Attorneys for Plaintiff
80 Broad St., Suite 1202
New York, NY 10004
(212) 799-8989

VERIFICATION

STATE OF NEW YORK }

} ss:

COUNTY OF NEW YORK }

I, the undersigned, an attorney duly admitted to practice law in the State of New York, state that I am a member of the firm REDMOND LAW PLLC, attorneys of record for the plaintiff in the within action; I have read the foregoing

COMPLAINT

and know the contents thereof; the same is true to my own knowledge except as to those matters therein stated to be alleged upon information and belief, and as to those matters, I believe to be true. The reason this verification is made by me and not by the plaintiff is that deponent maintains offices outside the County in which plaintiff resides.

The grounds of my belief as to all matters not stated upon my knowledge, are as follows: entire file maintained in your deponent's offices, investigations, etc.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
September 17, 2019

By: 
Cornelius Redmond, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK
ELIZABETH CAMEJO,

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Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O.
SERRANO, CASTILLO SECURITY SERVICES, LTD., and "SECURITY GUARD JOHN
DOE", first and last name being fictitious,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

REDMOND LAW PLLC
Attorneys for Plaintiff
80 Broad St., Suite 1202
New York, NY 10004
(212) 799-8989

Pursuant to 22NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the
Courts of New York State, certifies that, upon information and belief and reasonable inquiry,
the contentions contained in the annexed document are not frivolous



CORNELIUS REDMOND, ESQ.
REDMOND LAW PLLC

[] Notice of Entry

that the within is a (certified) true copy of a
duly entered in the Office of the Clerk of the within named court on

20

[] Notice of Settlement

that an order
will be presented to the Hon.

of which the within is a true copy
one of the judges of the within court at

on 20 at M.

Dated:

Yours, etc.

REDMOND LAW PLLC
80 Broad St., Suite 1202
New York, NY 10004
(212) 799-8989